Showing contexts for: **PWDVA** in Shrawan S/O Rajeramji Banasure vs Ankita W/O Shrawan Banasure on 24 September, 2025

Context size: Small | Current | Large | Larger

Rule. Rule made returnable forthwith. Heard finally with the consent of learned counsel for the parties.

2. This petition is filed under Article 226 of the Constitution of India. The petitioner is challenging the judgments passed in **PWDVA** Appeal No.14/2024 and **PWDVA** Appeal No.11/2024 on 19/11/2024 passed by the Additional Sessions Judge, Wardha. Further challenge is raised to the order dated 26/03/2024 passed by the Judicial Magistrate First Class, Ashti, in **PWDVA** No.29/2020.

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3. Brief facts of the case are that:

> The petitioner and the respondent are legally wedded husband and wife. Their marriage was solemnized on 28/06/2020. It is alleged that, after marriage, the present respondent-wife resided with the petitioner only for 63 days and left the matrimonial house. The petitioner filed an PIYUSH MAHAJAN Judgment 21-Cr.WP-69-2025 application for restitution of conjugal rights against the respondent-wife. Thereafter, the respondent-wife filed complaint under Section 498-A, so also, under the Protection of Women from Domestic Violence Act, 2005, before the Judicial Magistrate First Class, Ashti. The said case was registered as **PWDVA** No.29/2020. In the said proceedings, the respondent-

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> wife filed an application for grant of interim maintenance against the petitioner.

4. After hearing both the sides, the learned J.M.F.C. by order dated 26/03/2024 allowed the application and granted maintenance amounting to Rs.15,000/- to the

respondent-wife. The present petitioner-husband and the respondent-wife challenged the said order by filing an appeal before the Sessions Court at Wardha which is numbered as **PWDVA** No.11/2024 and **PWDVA** No.14/2024, respectively. By an order dated 19/11/2024, the learned Additional Sessions Judge, Wardha, was pleased to allow the appeal filed by the PIYUSH MAHAJAN Judgment 21-Cr.WP-69-2025 respondent-wife by modifying the maintenance amount and enhanced the same to Rs.25,000/-. However, the appeal filed by the present petitioner was dismissed by separate judgments. Therefore, the present petition is filed challenging both the orders.

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5. I have heard the learned counsel for the petitioner as well as learned counsel for the respondent. The learned counsel for the petitioner submits that this is the second round of litigation before this Hon'ble Court. Initially, the petitioner- husband, so also, respondent-wife, approached this Court by filing Criminal Writ Petition Nos. 204/2023 and 468/2023, wherein, both have challenged the order dated 10/02/2023 passed by the Learned Additional Sessions Judge, Wardha, in **PWDVA** Appeal No. 02/2021. The learned Sessions Court in Appeal filed by the wife under Section 29 of the Protection of Women from Domestic Violence Act, 2005, has enhanced the amount of interim maintenance from Rs.6,000/- to PIYUSH MAHAJAN Judgment 21-Cr.WP-69-2025 Rs.15,000/-. It is further submitted by the learned counsel for the petitioner that the petition filed by the petitioner-husband was allowed and the petition filed by the respondent-wife was dismissed and the matter was remanded back to the learned Judicial Magistrate First Class, Ashti, to consider it afresh, in the light of the ratio laid down in the case of Rajnesh VS Neha & Ano. (2021) 2 SCC 3241. Accordingly, the Judicial Magistrate First Class, Ashti, passed an order below Exh.13 on 26/03/2024 thereby granting interim maintenance of Rs.15,000/- to the respondent-wife.